

# Work and rest requirements

In addition to the general duty to not drive a fatigue-regulated heavy vehicle on a road while fatigued, drivers must comply with certain maximum work and minimum rest limits.

Parties in the supply chain have to undertake everything reasonably practicable to prevent drivers from exceeding these limits. This is similar to occupational health and safety laws and means that drivers must be allowed to stop if they are at risk of exceeding the limits and make alternative arrangements.

For additional information and guidance on fatigue in the heavy vehicle transport industry, as well as obligations under the HVNL for parties in the Chain of Responsibility (CoR), see [Regulatory Advice – Fitness to drive: Fatigue](#)

For information (including examples) on completing your Work Diary during Daylight Saving Time, see [Managing fatigue work and rest requirements under Daylight Saving Time](#).

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## Standard hours

Standard hours apply to all drivers who do not have accreditation for fatigue management.

### Solo drivers

| Time                | Work                                                        | Rest                                                                                           |
|---------------------|-------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| In any period of... | A driver must not work for more than a <b>maximum</b> of... | And must have the rest of that period off work with at least a <b>minimum</b> rest break of... |
| 5 ½ hours           | 5 ¼ hours work time                                         | 15 continuous minutes rest time                                                                |
| 8 hours             | 7 ½ hours work time                                         | 30 minutes rest time in blocks of 15 continuous minutes                                        |
| 11 hours            | 10 hours work time                                          | 60 minutes rest time in blocks of 15 continuous minutes                                        |
| 24 hours            | 12 hours work time                                          | 7 continuous hours stationary rest time*                                                       |
| 7 days              | 72 hours work time                                          | 24 continuous hours stationary rest time                                                       |
| 14 days             | 144 hours work time                                         | 2 x night rest breaks <sup>#</sup> <b>and</b> 2 x night rest breaks taken on consecutive day   |

*\*Stationary rest time is the time a driver spends out of a heavy vehicle or in an approved sleeper berth of a stationary heavy vehicle. #Night rest breaks are 7 continuous hours stationary rest time taken between the hours of 10pm on a day and 8am on the next day (using the time zone of the base of the driver) or a 24 continuous hours stationary rest break.*

[Download the Daily work and rest hours planner - Standard hours \(solo drivers\) \(PDF, 24KB\)](#)

### Solo drivers in the bus and coach sector only

| Time                | Work                                                        | Rest                                                                                           |
|---------------------|-------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| In any period of... | A driver must not work for more than a <b>maximum</b> of... | And must have the rest of that period off work with at least a <b>minimum</b> rest break of... |
| 5 ½ hours           | 5 ¼ hours work time                                         | 15 continuous minutes rest time                                                                |
| 8 hours             | 7 ½ hours work time                                         | 30 minutes rest time in blocks of 15 continuous minutes                                        |
| 11 hours            | 10 hours work time                                          | 60 minutes rest time in blocks of 15 continuous minutes                                        |
| 24 hours            | 12 hours work time                                          | 7 continuous hours stationary rest time*                                                       |
| 7 days              |                                                             | 6 x night rest breaks <sup>#</sup>                                                             |
| 28 days             | 288 hours work time                                         | 4 x 24 hours continuous hours stationary rest time                                             |

*\*Stationary rest time is the time a driver spends out of a heavy vehicle or in an approved sleeper berth of a stationary heavy vehicle. #Night rest breaks are 7 continuous hours stationary rest time taken between the hours of 10pm on a day and 8am on the next day (using the time zone of the base of the driver) or a 24 continuous hours stationary rest break.*

## Two-up drivers

| Time                | Work                                                        | Rest                                                                                                                                               |
|---------------------|-------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------|
| In any period of... | A driver must not work for more than a <b>maximum</b> of... | And must have the rest of that period off work with at least <b>minimum</b> rest break of...                                                       |
| 5 ½ hours           | 5 ¼ hours work time                                         | 15 continuous minutes rest time                                                                                                                    |
| 8 hours             | 7 ½ hours work time                                         | 30 minutes rest time in blocks of 15 continuous minutes                                                                                            |
| 11 hours            | 10 hours work time                                          | 60 minutes rest time in blocks of 15 continuous minutes                                                                                            |
| 24 hours            | 12 hours work time                                          | 5 continuous hours stationary rest time* or 5 hours continuous rest time in an approved sleeper berth while the vehicle is moving                  |
| 52 hours            |                                                             | 10 continuous hours stationary rest time                                                                                                           |
| 7 days              | 60 hours work time                                          | 24 continuous hours stationary rest time <b>and</b> 24 hours stationary rest time in blocks of at least 7 continuous hours of stationary rest time |
| 14 days             | 120 hours work time                                         | 2 x night rest breaks <sup>#</sup> <b>and</b> 2 x night rest breaks taken on consecutive days                                                      |

*\*Stationary rest time is the time a driver spends out of a heavy vehicle or in an approved sleeper berth of a stationary heavy vehicle. #Night rest breaks are 7 continuous hours stationary rest time taken between the hours of 10pm on a day and 8am on the next day (using the time zone of the base of the driver) or a 24 continuous hours stationary rest break.*

**Use of an approved sleeper berth for Two-up drivers:** The NHVR recommends only using a sleeper berth for continuous rest time (when the vehicle is moving) prior to a driver's major rest break.

## What to do when swapping from AFM to another work and rest option

Drivers who change from AFM to Standard Hours (or BFM) must not drive a fatigue-regulated heavy vehicle unless:

- they are compliant with all the work and rest requirements of the new work and rest option (i.e. Standard Hours), and
- they have had 48 continuous hours of rest.

## Basic Fatigue Management (BFM)

Basic Fatigue Management (BFM) is a module of the National Heavy Vehicle Accreditation Scheme (NHVAS).

BFM gives operators a greater say in when drivers can work and rest, as long as the risks of driver fatigue are properly managed. Operators with BFM accreditation can operate under more flexible work and rest hours, allowing for (among other things) work of up to 14 hours in a 24-hour period.

### BFM Solo drivers

| Time                             | Work                                                                      | Rest                                                                                                                                                                                                                          |
|----------------------------------|---------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| In any period of...<br>6 ¼ hours | A driver must not work for more than a maximum of...<br>6 hours work time | And must have the rest of that period off work with at least a minimum rest break of...<br>15 continuous minutes rest time                                                                                                    |
| 9 hours                          | 8 ½ hours work time                                                       | 30 minutes rest time in blocks of 15 continuous minutes                                                                                                                                                                       |
| 12 hours                         | 11 hours work time                                                        | 60 minutes rest time in blocks of 15 continuous minutes                                                                                                                                                                       |
| 24 hours                         | 14 hours work time                                                        | 7 continuous hours stationary rest time*                                                                                                                                                                                      |
| 7 days                           | 36 hours long/night work time**                                           | No limit has been set                                                                                                                                                                                                         |
| 14 days                          | 144 hours work time                                                       | 24 continuous hours stationary rest time taken after no more than 84 hours work time and 24 continuous hours stationary rest time and 2 x night rest breaks <sup>#</sup> and 2 x night rest breaks taken on consecutive days. |

\*Stationary rest time is the time a driver spends out of a regulated heavy vehicle or in an approved sleeper berth of a stationary regulated heavy vehicle.

\*\*Long/night work time is any work time (outside of the period midnight to 6.00 am) that is in excess of 12 hours of work in a 24 hour period or any work time between midnight and 6 am (or the equivalent hours in the time zone of the base of a driver).

<sup>#</sup>Night rest breaks are 7 continuous hours stationary rest time taken between the hours of 10pm on a day and 8am on the next day (using the time zone of the base of the driver) or a 24 continuous hours stationary rest break.

Download the BFM daily work and rest hours planner for solo drivers (PDF, 24KB)

## BFM Two-up drivers

| Time                            | Work                                                                       | Rest                                                                                                                                        |
|---------------------------------|----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------|
| In any period of...<br>24 hours | A driver must not work for more than a maximum of...<br>14 hours work time | And must have the rest of that period off work with at least a minimum rest break of...<br>No limit has been set                            |
| 82 hours                        | No limit has been set                                                      | 10 continuous hours stationary rest time*                                                                                                   |
| 7 days                          | 70 hours work time                                                         | 24 continuous hours stationary rest time and 24 hours stationary rest time in blocks of at least 7 continuous hours of stationary rest time |
| 14 days                         | 140 hours work time                                                        | 4 night rest breaks <sup>#</sup>                                                                                                            |

\*Stationary rest time is the time a driver spends out of a regulated heavy vehicle or in an approved sleeper berth of a stationary regulated heavy vehicle.

<sup>#</sup>Night rest breaks are 7 continuous hours stationary rest time taken between the hours of 10pm on a day and 8am on the next day (using the time zone of the base of the driver) or a 24 continuous hours stationary rest break.

**Use of an approved sleeper berth for Two-up drivers:** The NHVR recommends only using a sleeper berth for continuous rest time (when the vehicle is moving) prior to a driver's major rest break.

## What to do when swapping between BFM and Standard Hours

Drivers who change from BFM to Standard Hours must not drive a fatigue-regulated heavy vehicle unless:

- they are compliant with all the work and rest requirements of the new work and rest option (i.e. Standard Hours), or
- they have had 48 continuous hours of rest.

For more information read the [Swapping between BFM and Standard Hours fact sheet \(PDF, 249KB\)](#)

## Advanced Fatigue Management (AFM)

Advanced Fatigue Management (AFM) is currently the only available mechanism under the Heavy Vehicle National Law (HVNL) that can provide you with tailored work and rest hours.

For more information, see [Advanced Fatigue Management \(AFM\)](#).

## Personal use of a fatigue-regulated heavy vehicle

Any activity involving a fatigue-regulated heavy vehicle is counted as work time and limited by the Heavy Vehicle National Law (HVNL). However, we understand that drivers may need to use their fatigue-regulated heavy vehicle for personal reasons from time to time if they cannot reasonably access another means of transport.

In such cases, the [National Heavy Vehicle Work and Rest Hours Exemption \(Personal Use\) Notice 2025 \(No.1\)](#) provides drivers **up to one hour additional work time** to carry out a **permitted personal activity**.

## What is a permitted personal activity?

A permitted personal activity is any work done by a driver for personal, non-commercial purposes and includes:

- stowing or retrieving personal effects from a fatigue-regulated heavy vehicle
- driving a fatigue-regulated heavy vehicle for personal reasons (e.g. purchasing groceries or visiting a bank or a post office).

The exemption allows drivers to use their fatigue-regulated heavy vehicle:

- during the driver's 24 continuous-hour stationary rest break (Standard Hours, BFM and AFM)
- any time where all conditions of the exemption are met (Standard Hours).

To **protect drivers** from commercial pressures leading to longer work times, exemptions are for **non-commercial purposes only**. For example, the exemption can't be used to drive a heavy vehicle to a mechanic for repairs or to get home at the end of a journey.

The [Guideline for the National Personal Use Work and Rest Hours Exemption \(PDF, 624KB\)](#) outlines the requirements and conditions for using this exemption.

## Fatigue management exemptions

For more information on fatigue exemption notices and permits that provide alternative methods to manage work and rest hours, work diaries and record-keeping obligations, see [Fatigue management exemptions](#).

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